

Present:
Mr. Justice S M Kuddus Zaman
And
Mr. Justice Md. Ali Reza

Criminal Revision No.4097 of 2023

Deputy Attorney General for Bangladesh
.... Petitioner

-Versus-

The State and others

.... Opposite Parties

Mr. Sujit Chatterjee, Deputy Attorney General

.... For the petitioner.

None appears... For the opposite parties.

Heard and Judgment on 06.02.2024

S M Kuddus Zaman, J:

On an application under Section 435 of the Code of Criminal Procedure at the instance of the Deputy Attorney General this Rule was issued against the opposite parties to show cause as to why the order dated 01.08.2023 passed by the learned Judge (Senior District and Sessions Judge) Jononirpatta Bignokari Aporadh Daman Tribunal, Rajshahi in Session Case No.663 of 2023 arising out of Godagari Police Station Case No.05 dated 03.01.2023 under Section 36(1) Table 9(Ga)/41/26 of Madok Drobbo Niontran Ain, 2018, granting bail to the opposite party on

unjust and flimsy ground should not be set aside and/or pass such other or further order or orders as to this Court may seem fit and proper.

Facts in short are that on 03.01.2023 at 15.20 hours Detective Police arrested accused Md. Setabur Rahman @ Babu and other two persons on suspicion of carrying narcotics and from the pocket of the trouser of accused Md. Setabur Rahman 100 gm heroine was recovered and seized. Above case was transmitted to the Court of Janonirapatta Bighnokari Aporadh Daman Tribunal, Rajshahi (hereinafter refer to as Tribunal) for trial.

Mr. Sujit Chatterjee, learned Advocate for the petitioner submits that the learned Judge of the Tribunal namely Mr. Zia Uddin Mahmud rejected a petition for bail of opposite party No.1 Md. Setabur Rahman by order dated 26.06.2023. But on 01.08.2023 which was not a fixed date of the case the learned Judge ordered for put up of the case record for hearing a petition for bail of above accused and granted bail to above accused by a non speaking order.

Above two orders on the same subject passed by the same judge are mutually contradictory and the accused was granted bail within five months from his date of arrest with 100 gm heroine which is unprecedented, unlawful and motivated.

The learned Deputy Attorney General lastly submits that above learned Judge has granted bail in 11 other cases of similar nature under the Narcotics Control Act. The impugned unlawful order of bail needs to be set aside and the learned Session Judge should be disciplined by the High Court Division.

No one appears on behalf of the opposite parties although the matter came up in the list for hearing today.

We have considered the submissions of the learned Deputy Attorney General for the petitioner and carefully examined all materials on record.

It turns out from the FIR that the name of accused Setabur Rahman @ Babu stands at serial No.1 in the FIR and specific mention has been made in the body of the ejahar as well as in the seizure list that 100 gm heroine was recovered from the pocket of the trouser of accused Md. Setabur Rahman @ Babu on 03.01.2023.

Above seized alamat was chemically examined by the Chemical Examiner of the Forensic Laboratory, CID, Rajshahi and above seized substance was determined as heroine.

The Senior Session Judge of Rajshahi framed charge against accused Md. Setabur Rahman @ Babu under Section 36 of the Narcotics Control Act, 2018 and transferred the case to the Tribunal (hereinafter referred to as tribunal) for trial. But we could not find out anything from the case record showing that the learned Judge of the Tribunal took any meaningful endeavor for commencement of the trial let alone conclude the same.

On a detailed analysis of the materials on record the learned Judge rejected a petition for bail of accused Md. Setabur Rahman @ Babu. But after five weeks of passing of above order the same learned Judge granted bail of accused on a date which was not a fixed date of the case and by a non-speaking order.

Narcotics has created a national problem which is destroying the young segment of our population and giving rise to other criminal activities of serious manner. The manner in which Mr. Zia Uddin Mahmud the learned Judge of the Tribunal

dealt with the trial and petitions for bail of accused person in this case involving 100 gram heroine is highly unlawful and unacceptable. The learned Judge must be cautious in the future while dealing with the petition for bail in narcotics cases.

In above view of the materials on record we find substance in this application under Section 435 of the Code of Criminal Procedure and the Rule issued in this connection deserves to be made absolute.

In the result, the Rule is made absolute. The impugned order dated 01.08.2023 passed by the learned Judge (Senior District and Sessions Judge) Jononirpatta Bignokari Aporadh Daman Tribunal, Rajshahi in Session Case No.663 of 2023 arising out of Godagari Police Station Case No.05 dated 03.01.2023 is set aside.

The learned Judge of Tribunal, Rajshahi is directed to issue a warrant of arrest to secure the arrest of accused Md. Setabur Rahman @ Babu and conclude the trial of the case within six months from the date of receipt of this order without granting any adjournment beyond 15(fifteen) days. But if he fails to conclude

the trial within above date he will have to explain his failure to this Court through Registrar General, Supreme Court in writing.

The Superintendent of Police, Rajshahi is directed to ensure that the witnesses of above case are produced before the Court on the date to be fixed by above tribunal.

Let copies of this order be sent to the learned Judge of Jononirpatta Bignokari Aporadh Daman Tribunal, Rajshahi and Superintendent of Police, Rajshahi at once

Md. Ali Reza, J:

I agree.

MD.MASUDUR RAHMAN
BENCH OFFICER